



CHAPTER lxxiv.

An Act to authorise the provost magistrates and councillors of the burgh of Ayr to construct a generating station and works and utilise the waters of Loch Doon for generating electricity to make further provision with regard to their electricity undertaking and for other purposes.
[4th August 1922.]

A.D. 1922.

WHEREAS the burgh of Ayr (hereinafter called "the burgh") in the county of Ayr is under the government for municipal purposes of the provost magistrates and councillors of the burgh (hereinafter called "the Corporation"):

And whereas by the Ayr Burgh Electric Lighting Orders 1890 and 1914 the Corporation are authorised to supply electricity for all purposes within the burgh and also within the burgh of Prestwick and portions of the parishes of Dundonald Monkton and Prestwick Ayr Dalrymple and Maybole all in the county of Ayr:

And whereas the Corporation have erected and are using for the purposes of their electricity undertaking a generating station in the burgh:

And whereas in consequence of the increasing demands for electricity within the area of supply of the Corporation the capacity of the said generating station is insufficient to enable the Corporation to generate thereat the quantity of electricity which is now required to meet the demands of present and prospective consumers of electricity within the said area of supply:

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And whereas it is expedient that the Corporation should be empowered to erect a station for the development and use of water power and for the generation of electricity as in this Act provided and for those purposes and in connexion therewith to construct the works hereinafter described :

And whereas in view of the increase which has occurred in working costs it is expedient that the maximum charges leviable by the Corporation for the supply of electricity should be increased :

And whereas it is expedient that the further powers in this Act contained with reference to their electricity undertaking should be conferred upon the Corporation :

And whereas it is expedient that the Corporation should be authorised to take and use lands for the purposes and under the provisions contained in this Act :

And whereas it is expedient that the Corporation should be authorised to borrow money and that the other provisions in this Act contained should be enacted :

And whereas estimates have been prepared by the Corporation for and in relation to the purposes hereinafter mentioned in respect of which they are by this Act authorised to borrow money and such estimates are as follows :—

For and in connexion with the purchase	£
of lands and servitudes for and for the	
construction of the generating station	
and works and the erection of dwelling-	
houses authorised by this Act	- 123,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a period of years :

And whereas plans and sections showing the lines situations and levels of the several works authorised by this Act and plans showing the lands which may be taken compulsorily for the purposes or under the powers of this Act and also a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the principal sheriff clerks of the counties of Ayr and Kirkcudbright and such plans

sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference : A.D. 1922.

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Ayr Burgh (Electricity) Act 1922. Short title.

2. This Act shall (except as otherwise in this Act provided) commence and have effect on and from the date of the passing of this Act which date is hereinafter referred to as "the commencement of this Act." Commence-
ment of
Act.

3. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Electricity.

Part IV.—Finance.

Division of
Act into
Parts.

4. The following Acts and parts of Acts (so far as the same are applicable for the purposes of and are not inconsistent with or varied by the provisions of this Act) are subject to the provisions of this Act hereby incorporated with this Act (that is to say) :— Incorpor-
ation of
Acts.

The Lands Clauses Acts ;

Sections 12 to 17 85 and 87 of the Waterworks
Clauses Act 1847 ;

The provisions of the Railways Clauses Consolidation
(Scotland) Act 1845 with respect to the temporary
occupation of lands near the railway during the
construction thereof and with respect to the
crossing of roads and other interferences therewith
shall apply to the works authorised by this Act
and in construing the said provisions for the
purposes of such application "the railway" means

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the said works and the works immediately connected therewith and "the centre of the railway" means any part of the lands adjoining those works within the limits of deviation shown on the deposited plans.

Correction
of errors in
deposited
plans and
book of
reference.

5. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to the sheriff of the county in which such lands are situate for the correction thereof and if it appear to such sheriff that the omission misstatement or wrong description arose from mistake he shall certify the same accordingly and shall in such certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff clerk of the county and a duplicate thereof shall be deposited with the clerk of the parish council of the parish in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Interpreta-
tion.

6. In this Act the several words terms and expressions to which by the Acts wholly or partially incorporated herewith meanings are assigned shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the context otherwise requires—

"The burgh" means the municipal burgh of Ayr;

"The Corporation" means the provost magistrates and councillors of the burgh;

"The tribunal" means the tribunal to whom any question of disputed purchase money or compensation is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;

“The sheriff” means the sheriff of the county of Ayr or the sheriff of the counties of Dumfries and Galloway as the case may be; A.D. 1922.

“The Act of 1873” “the Act of 1885” and “the Act of 1899” mean respectively the Ayr Burgh Act 1873 the Ayr Burgh Act 1885 and the Ayr Burgh Act 1899;

“The Order of 1890” and “the Order of 1914” mean respectively the Ayr Burgh Electric Lighting Order 1890 and the Ayr Burgh Electric Lighting (Extension) Order 1914;

“The Burgh Police Acts” means the Burgh Police (Scotland) Acts 1892 to 1911;

“The area of supply” means the area for the supply of electricity by the Corporation under and for the purposes of the Order of 1890 and the Order of 1914;

“The existing sluices” means the existing sluices regulating the issue of the waters from Loch Doon into the River Doon;

“The electricity undertaking” means the electricity undertaking of the Corporation authorised by the Order of 1890 the Order of 1914 and this Act;

“The burgh general assessment” means the burgh general assessment leviable under the Burgh Police Acts.

PART II.

LANDS.

7. Subject to the provisions and for the purposes of this Act the Corporation may enter upon take appropriate and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference. Power to acquire lands.

8. And whereas in the construction of the works authorised by this Act or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material Owners may be required to sell parts only of certain properties.

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A.D. 1922. detriment thereto Therefore the following provisions shall
have effect :—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties" :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged, or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by the tribunal determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion so determined to be severable without the

Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal : A.D. 1922.

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not the tribunal shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation (Scotland) Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not

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or but for this section would or would not be subject to the provisions of section 90 (No party to be required to sell part of a house) of the Lands Clauses Consolidation (Scotland) Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Corporation
may acquire
servitudes
only in
certain
cases.

9.—(1) The Corporation may in lieu of acquiring any lands for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such servitudes only in such lands as they may require for such purposes and may give notice to treat in respect of such servitudes describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such servitudes as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Corporation have acquired servitudes only under the provisions of this section the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers of such lands for the time being shall subject to such servitudes have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided always that (except in the case of an aqueduct to be constructed at a depth of forty feet or upwards below the surface of the ground) nothing in this section contained shall authorise the Corporation to acquire by compulsion any such servitude in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of a servitude only and every notice to treat for the acquisition of a servitude shall be endorsed with notice of this provision.

Persons
under dis-
ability may
grant ser-
vitudes &c.

10. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any servitude right or privilege (but as regards any servitude right or privilege of water in which persons other than the grantors have an interest only to the extent of the grantors' interest therein) required for the purposes of this Act in over or affecting

any such lands and the provisions of the said Acts with respect to lands feu duties ground annuals and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively. A.D. 1922.

11. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the commencement of this Act. Period for compulsory purchase of lands.

12.—(1) All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. As to private rights of way over lands taken compulsorily.

(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

13. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the seventeenth day of November one thousand nine hundred and twenty-one if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act. Compensation in case of recently acquired interest.

14. In addition to the lands houses and property which the Corporation are by this Act authorised to take compulsorily the Corporation may from time to time purchase take on lease or otherwise acquire by agreement and may hold any lands houses or other property and any interest right of user power or privilege in over or affecting any lands houses or other property which they think expedient for any of the purposes of this Act but the Corporation shall not create or permit a nuisance on any such lands. Purchase of lands by agreement.

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Power to
retain sell
&c. lands.

15. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit and may from time to time sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands houses or property or any interest therein acquired by them under this Act.

Reservation
of water
rights &c.

16. The Corporation on selling any lands held by them for the purposes of this Act and not required for those purposes may reserve to themselves all or any part of the water rights or other servitudes belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions as they may think fit.

PART III.

ELECTRICITY.

Application
of Electric-
ity (Supply)
Acts.

17. The provisions of the Electric Lighting Acts 1888 and 1909 and the schedule to the Electric Lighting (Clauses) Act 1899 which are contained in the sections thereof hereinafter mentioned shall not apply to the generating station and the works authorised by this Part of this Act or to the main transmission lines transmitting electricity from such generating station to any other generating station or to a substation or any transformers or switchgear necessary to and used for the control of such transmission lines or any buildings required to accommodate such transformers and switchgear or to the Corporation in relation thereto anything in any of the said Acts to the contrary notwithstanding (that is to say) :—

Sections 2 and 3 of the Electric Lighting Act 1888
section 7 of the Electric Lighting Act 1909 and
subsection (2) of section 2 of the schedule to the
said Act of 1899 ;

but except as aforesaid the provisions of the Electricity (Supply) Acts 1882 to 1919 (so far as the same are applicable for the purposes of and are not inconsistent with or

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varied by the provisions of this Act) shall apply to the purposes of this Act and to the Corporation in respect thereof and except as aforesaid the provisions of the schedule to the said Act of 1899 (so far as the same are not inconsistent with or varied by the provisions of this Act) are incorporated with and form part of this Act and this Act shall be deemed to be a Provisional Order or a special order as the case may require within the meaning of the said Acts. A.D. 1922.

The provisions of section 14 of the schedule to the Electric Lighting (Clauses) Act 1899 shall extend and apply to the laying down and placing under this Act of any cables or other works in through under along over or across the bed and foreshore of any river.

18. The undertakers for the purposes of this Part of this Act and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Corporation. Under-takers.

19. Subject to the provisions of this Act the Corporation may upon the lands shown on the deposited plans and described in the deposited book of reference and in Part I. of the Second Schedule to this Act or any part or parts thereof erect establish maintain work and use a station or stations or works for the development and use of water hydraulic and motive power and for producing generating using transforming transmitting conveying and distributing electricity and any material product matter or thing arising or used in the process of such generation or transformation with all necessary and convenient buildings turbines engines dynamos machinery apparatus and conveniences connected with such station or stations or works and may accordingly develop and use water hydraulic and motive power and produce generate use transform transmit convey store and distribute electricity and such materials products matters and things and may upon the lands shown on the deposited plans and described in the deposited book of reference and in Part II. of the Second Schedule to this Act erect construct and maintain dwelling-houses for persons employed by them and other buildings works and conveniences for the purposes of the electricity undertaking. Generating station &c.

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Works.

20. Subject to the provisions of this Act the Corporation may make construct lay down and maintain in the lines and situations and according to the levels shown on the deposited plans and sections the several works shown on the deposited plans and hereinafter described or some one or more of them or some part or parts thereof The said works will be situate in the counties of Ayr and Kirkcudbright and are—

In the parishes of Dalmellington and Straiton and county of Ayr and the parish of Carsphairn and county of Kirkcudbright—

A reservoir (Work No. 1) for the utilisation of the waters of the loch known as Loch Doon to be formed by the embankment or dam (Work No. 2) hereinafter described which said reservoir will commence in the parish of Straiton and county of Ayr and the parish of Carsphairn and county of Kirkcudbright at a point in the stream known as Gala Lane sixty yards or thereby measured in a southerly direction from the junction of that stream with the stream known as Loch Head Burn and will terminate in the parishes of Dalmellington and Straiton and county of Ayr at the said embankment or dam :

In the parishes of Dalmellington and Straiton and county of Ayr—

An embankment or dam (Work No. 2) across the present outlet from Loch Doon at or near the existing sluices :

In the parish of Dalmellington and county of Ayr—

An aqueduct (Work No. 3) commencing in the embankment or dam (Work No. 2) at or near the existing sluices and terminating in the surge chamber (Work No. 4);

A surge chamber (Work No. 4) to be situate at a point in the enclosure numbered 8 on the $\frac{1}{2500}$ Ordnance map Ayrshire sheet No. LII. 8 (edition 1909) two hundred yards or thereby measured in a southerly direction from the most southerly point of Dalfarson Cottages;

An aqueduct (Work No. 5) commencing in the surge chamber (Work No. 4) and terminating

at a point fifty yards or thereby measured in a south-easterly direction from the centre of the bridge carrying the estate road from Craigen-gillan to Dalfarson over the River Doon; A.D. 1922.

An aqueduct (Work No. 6) commencing at or near the termination of the aqueduct (Work No. 5) and terminating in the River Doon at a point one hundred and forty-five yards or thereby measured in a northerly direction from the centre of the said bridge;

An access road (Work No. 7) commencing at a point in the centre of the public road leading from Dalmellington to Loch Doon twenty-two yards or thereby measured in a north-easterly direction from the point where the said road crosses the Gaw Glen Burn and terminating at the east end of the bridge carrying the said estate road from Craigengillan to Dalfarson over the River Doon;

An access road (Work No. 8) commencing at a point in the centre of the public road leading from Dalmellington to Loch Doon two hundred and seven yards or thereby measured in a southerly direction from the southern boundary of Dalfarson plantation and terminating at a point on the line of the aqueduct (Work No. 3) seven hundred and sixty yards or thereby measured in a southerly direction from its termination hereinbefore described;

An access road (Work No. 9) commencing at a point in the centre of the public road leading from Dalmellington to Loch Doon two hundred and forty-seven yards or thereby measured in a northerly direction from the said southern boundary of Dalfarson plantation and terminating at a point on the line of the aqueduct (Work No. 3) two hundred and seventy yards or thereby measured in a southerly direction from its termination hereinbefore described;

An access road (Work No. 10) commencing at a point in the access road (Work No. 7) two hundred and forty-three yards or thereby measured in a north-easterly direction from

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its commencement hereinbefore described and terminating at or near the surge chamber (Work No. 4):

In the parish of Straiton and county of Ayr—

A diversion or raising of the road leading from Craigmalloch to Loch Doon School (Work No. 11) commencing at the most northerly point of that school and terminating at a point twenty-five yards or thereby measured in a northerly direction from the said point of commencement;

A diversion or raising of the public road leading from Dalmellington to Craigmalloch (Work No. 12) commencing at a point one thousand and twenty yards or thereby measured in a south-easterly direction from the most easterly point of Lamdoughty Steading and terminating at a point two hundred and thirty-three yards or thereby measured in a south-easterly direction from the said most easterly point of Lamdoughty Steading;

A diversion or raising of the public road leading from Dalmellington to Craigmalloch (Work No. 13) commencing at a point forty yards or thereby measured in a southerly direction from the point where the said road crosses the Garpel Burn and terminating at a point three hundred and seventy yards or thereby measured in a north-westerly direction from the point where the said road crosses the said burn;

A diversion or raising of the public road leading from Dalmellington to Craigmalloch (Work No. 14) commencing at a point six hundred and twenty-seven yards or thereby measured in a southerly direction from the centre of the Bridge of Ness and terminating at a point thirty-three yards or thereby measured in a south-westerly direction from the centre of the said bridge.

Subsidiary
works.

21. In addition to the foregoing works the Corporation subject to the provisions of this Act may upon the

lands delineated on the deposited plans and described in the deposited book of reference make maintain and use all such buildings machinery works retaining walls wave traps spending beaches fish passes croys conveniences and apparatus of whatever character as may be necessary or convenient in connexion with or subsidiary to the works authorised by this Part of this Act or any of them but nothing in this section shall exonerate the Corporation from any action or proceeding for nuisance in the event of any nuisance being caused or permitted by them upon such lands: A.D. 1922.

Provided that all operations of the Corporation under this section in Ness Glen or Loch Doon in so far as the same affect the fishing interests shall be carried out to the satisfaction of the Fishery Board for Scotland.

22. In the construction of the works authorised by this Part of this Act the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and they may deviate vertically from the levels shown on the deposited sections to any extent upwards not exceeding in the case of the reservoir (Work No. 1) five feet and in the case of all other works thirty feet and in all cases to any extent downwards Provided as follows (that is to say):— Limits of deviation.

The Corporation shall not construct the embankment or dam (Work No. 2) of a greater height above the general surface of the ground than that shown on the deposited sections in respect thereof and eight feet in addition;

Except for the purpose of crossing over a stream or road no part of the aqueducts shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

23. The Corporation may subject to the provisions of this Act enter upon pass over and use at all times and may lay down maintain use repair renew alter remove inspect examine and test electric lines cables mains works and apparatus conveniences and appliances (other than works for the generation of electricity) in under and along the lands in the county of Ayr delineated on the deposited Power to lay mains &c.

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— and hereinafter mentioned. (that is to say) :—

A strip of land in the parishes of Dalmellington and Straiton five yards or thereby in width being parts of the enclosures numbered 9 241 242 245 254 and 255 on the $\frac{1}{2500}$ Ordnance map Ayrshire sheets Nos. LII. 8 and LII. 4 (edition 1909).

And the Corporation may break up the surface of the said lands for all or any of the purposes aforesaid Provided that the Corporation shall make to the owners lessees and occupiers and other parties having any estate or interest in such lands compensation for the right or servitude of laying down erecting attaching and maintaining such electric lines cables mains works and other apparatus and may give notice to treat in respect of such right or servitude and the provisions of the Lands Clauses Acts shall apply to the purchase of such right or servitude as if such purchase were a purchase of lands within the meaning of such Acts :

Provided further that section 14 of the schedule to the Electric Lighting (Clauses) Act 1899 so far as it relates to the Postmaster-General shall apply to the laying down of such electric lines cables mains works and other apparatus under this section in like manner as it applies to the placing of any works in under along or across any street or public bridge.

Corporation
may stop
up roads
&c.

24. The Corporation may stop up and discontinue for public traffic any footpaths bridle-paths drove roads or other tracks or fords on over or across the lands shown on the deposited plans and described in the deposited book of reference or which will be submerged or affected by the construction of the works authorised by this Part of this Act and upon the stopping up and discontinuance for traffic of the same respectively the sites and soil thereof respectively and the fee thereof shall be by this Act vested in the Corporation so far as they are the owners of the adjoining lands on both sides free from all public and other rights of way or passage in over or affecting the same :

Provided that the Corporation shall if so required by the road authority provide other footpaths bridle-paths drove roads or tracks in substitution for those so

stopped up and discontinued to the reasonable satisfaction of the road authority but the Corporation shall not be obliged in the provision of the same to go outside the limits of deviation shown on the deposited plans and in case any difference shall arise between the Corporation and the road authority with respect to the matters aforesaid such difference shall be settled by an arbiter being an engineer who (unless otherwise agreed on between the parties in difference) shall on the application of either party after seven days' notice in writing to the other of them be named by the Minister of Transport and the costs of and incident to the reference shall be borne as the arbiter shall direct. A.D. 1922.

25.—(1) Where this Act authorises the diversion of a road the Corporation may subject to the provisions of this Act stop up and cause to be discontinued as a road so much of the existing road as will be rendered unnecessary by the substituted road shown on the deposited plans. Stopping up roads in case of diversion.

(2) Such stopping up shall not take place until the substituted road is completed to the satisfaction of the road authority and is open for public use or in case of difference between the Corporation and the road authority until the sheriff shall have certified that the substituted road has been completed to his satisfaction and is open for public use.

Before applying to the sheriff for his certificate the Corporation shall give to the road authority seven days' notice in writing of their intention to apply for the same.

(3) As from the completion of the substituted road to the satisfaction of the road authority or as from the date of the said certificate (as the case may be) all rights of way over or along the portion of the existing road authorised to be stopped up shall be extinguished and the Corporation may subject to the provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of the electricity undertaking the site of the portion of road stopped up as far as the same is bounded on both sides by lands of the Corporation and in construing the said provisions for the purposes of this section the expression "the railway" shall mean the portion of the road stopped up :

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Provided that the Corporation shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Acquisition of Land (Assessment of Compensation) Act 1919 with reference to the taking of lands otherwise than by agreement.

(4) The substituted road shall in all respects be under the jurisdiction of and shall be maintained and repaired by the authority body or person liable to maintain the portion of the existing road for which the substituted road is provided.

Power to
alter roads
&c. temporarily.

26. For the purposes and during the execution of the works by this Part of this Act authorised and in maintaining the same and subject to the provisions of this Act the Corporation may from time to time in or upon any of the lands shown on the deposited plans and described in the deposited book of reference temporarily break up or cross over or under alter stop up or divert any highways roads lanes paths bridges passages sewers drains streams watercourses gas pipes and water pipes and electric or telephonic apparatus which they may from time to time find it expedient for any of those purposes so to interfere with providing when possible a proper temporary substitute before interrupting the traffic on any such highway or passage or the flow or passage of water gas sewage or electricity in or through any such sewer drain stream watercourse pipe or apparatus and making full compensation to all persons injuriously affected by anything done under the provisions of this section Provided that nothing in this section shall extend to or authorise any interference with any telegraphic line (as defined by the Telegraph Act 1878) or other property of the Postmaster-General Provided also that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electricity (Supply) Acts 1882 to 1919 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

Power to
take waters.

27. Subject to the provisions of this Act the Corporation may collect impound take use divert and appropriate for the purposes of the works authorised by this

Part of this Act and of the electricity undertaking the waters of Loch Doon and all lochs streams or tributaries the waters of which drain or flow into the said loch above the site of the embankment or dam (Work No. 2) and all such streams springs and waters as may be intercepted by the said works.

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28. The Corporation may during and for the purposes of the construction of the reservoir (Work No. 1) the embankment or dam (Work No. 2) and the aqueduct (Work No. 3) lower the level of the water in Loch Doon to such extent as the Corporation may deem necessary or expedient and may from time to time by means of the works authorised by this Part of this Act or some of them raise and lower or regulate the level of the water in the said loch.

Power to vary level of water in Loch Doon.

29.—(1) As from the commencement of the works authorised by this Act section 37 (Payments to be made by Corporation for altering and maintaining sluices &c. at issue of Loch Doon and provision for regulation thereof) of the Act of 1885 shall be and is hereby repealed and in lieu thereof the following provisions shall have effect:—

Transfer of existing sluices to Corporation.

The existing sluices shall be transferred to and vested in the Corporation and shall be under the sole management and control of the Corporation and the said sluices and the pass or passes therein shall be maintained and regulated by the Corporation so that at all times prior to the date on which the Corporation commence to take water from Loch Doon under this Act so far as the level of the water in the loch will permit a supply of water may be sent down the River Doon sufficient for the use of the owners and occupiers of the mills and other properties on the banks of that river and for the passage of salmon.

(2) The Corporation shall as from the transfer of the existing sluices to the Corporation be relieved of the obligation to make the annual payments mentioned in section 38 (Compensation water) of the Act of 1885.

30.—(1) From and after the date on which the Corporation commence to take water from Loch Doon under this Act the Corporation may take from Loch Doon

Compensation water.

[Ch. lxxiv.] *Ayr Burgh (Electricity)* [12 & 13 GEO. 5.]
Act, 1922.

A.D. 1922. — any water they may require subject to the following restrictions :—

- (a) The Corporation shall during every day of twenty-four hours discharge or deliver into the River Doon at or near the existing sluices not less than eight million gallons of water in a continuous flow. Provided that the Corporation shall from time to time when the loch is not overflowing if so required by the River Doon Fishery Board by one week's notice in writing or such less notice as may be agreed in lieu of discharging the said quantity of eight million gallons per day during any period not exceeding twenty-one days to be specified in such notice discharge not less than one million gallons per day of twenty-four hours and allow the balance between the quantity so discharged as last aforesaid and the said quantity of eight million gallons per day to accumulate in the loch and at the expiry of such period the Corporation shall discharge the quantity of water so accumulated in a regular and continuous flow in addition to any other quantity of compensation water which the Corporation are at the time required to discharge or deliver into the said river but the Corporation shall not be obliged to discharge such water at any time at a greater rate than sixty-five million gallons in any day of twenty-four hours. Provided further that no such notice shall be given by the said Fishery Board until after they shall have obtained the approval of the proprietor of the Craigengillan Estate but such approval shall not be unreasonably withheld and if any difference arises as to whether such approval is unreasonably withheld such difference shall be referred to an arbiter to be agreed upon or failing agreement to be appointed by the sheriff:
- (b) All water taken by the Corporation from Loch Doon under the powers of this Act and not consumed at the generating station and works of the Corporation shall be returned to the River Doon at or near the termination of the aqueduct (Work No. 6) and so long as there shall be sufficient water in the loch to enable them to do so

the Corporation shall at all times return such water to the River Doon as provided by this subsection at a rate not less than thirteen and a half million gallons per day and so that unless otherwise agreed between the Corporation and the owners and tenants of mills mentioned in the section of this Act, whereof the marginal note is "For protection of certain mills" there shall not be a less quantity returned or delivered to the River Doon than thirty million gallons in any day of twenty-four hours (other than a Sunday) or than twenty-five million gallons upon any Sunday.

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(2) For the purpose of measuring the quantity of compensation water to be so discharged or delivered into the said river the Corporation shall erect and maintain at a point in the said river at or near the existing sluices and also at a point in the said river at or near the termination of the aqueduct (Work No. 6) a proper and suitable measuring gauge or other apparatus over or through which the said compensation water shall flow and the same shall be under the sole management and control of the Corporation and shall be open to the inspection and examination at all reasonable times of persons duly authorised by the said Fishery Board and of the Inspector of Salmon Fisheries of Scotland or any other person authorised by the Fishery Board for Scotland.

(3) In case of any neglect on the part of the Corporation to maintain the said gauge or other apparatus in a state of efficiency or in case of any other neglect on the part of the Corporation by or in consequence of which the said quantity of compensation water shall not so flow the Corporation shall for every day on which such neglect occurs forfeit and pay to the River Doon Fishery Board (who may sue for and recover the same) the sum of five pounds.

(4) During the construction of the works by this Act authorised or any of them the Corporation shall if so required by the River Doon Fishery Board pay to that Board the reasonable cost of the employment of an additional watcher or bailiff for the protection of the fisheries of the River Doon and the Corporation shall take all such steps as may be necessary to prevent as far as possible

[Ch. lxxiv.] *Ayr Burgh (Electricity)* [12 & 13 Geo. 5.]
Act, 1922.

A.D. 1922. — pollution of the said river arising from the construction of the works by this Act authorised or caused by workmen employed in such construction.

(5) If any difference arises between the Corporation and the River Doon Fishery Board under the foregoing provisions of this section such difference shall be referred to the arbitration of an engineer to be agreed upon or failing agreement to be appointed on the application of either party by the sheriff.

(6) The provisions of this section shall be accepted and taken by all persons interested as full compensation for all water which the Corporation can divert collect impound or appropriate by means of the works authorised by this Part of this Act.

For protection of certain mills.

31. Notwithstanding anything in subsection (6) of the immediately preceding section of this Act (a) Ernest Smith or other the owner of the mills known as Skeldon Mills in the county of Ayr and Miller and Porteous Limited as tenants of the said mills (b) William Paterson or other the owner of the mill known as Monkwood Mill in the county of Ayr (c) M'Gill and Smith Limited as tenants of Alloway Mill in the county of Ayr and (d) David and Thomas Bowie sole partners of the Greenan Laundry Company as tenants of the Greenan Laundry in the county of Ayr shall respectively be entitled if the said mills or laundry or any of them be injuriously affected by the exercise of the powers of this Act to receive compensation (in addition to the compensation provided by the immediately preceding section of this Act) for any loss or damage sustained by them respectively by reason of such injurious affection and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. Provided that the tribunal in fixing such compensation (if any) shall take into account the provisions other than subsection (6) of the immediately preceding section of this Act.

For protection of Crown salmon fishings.

32. Notwithstanding anything in subsection (6) of the section of this Act of which the marginal note is "Compensation water" in the event of His Majesty or His tenants sustaining any damage or injury in respect of any of His rights of salmon fishing within five years after the completion of the works by this Act authorised

through the exercise of the powers of this Act the Corporation shall make compensation for such damage or injury and in case the amount of such compensation shall not be agreed upon the same shall be ascertained and fixed by the decision and decree arbitral of two arbiters to be appointed the one by the Commissioners of Woods and the other by the Corporation or of an oversman to be named by the said arbiters to act in the event of their differing in opinion and the Arbitration (Scotland) Act 1894 shall apply to any arbitration under this section Provided that the arbiters or oversman in fixing such compensation (if any) shall take into account the provisions of this Act.

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33. Notwithstanding anything in subsection (6) of the section of this Act of which the marginal note is "Compensation water" Major Julian Oswald of Auchincruive and Cavens in the counties of Ayr and stewartry of Kirkcudbright James Kennedy of Doonholm Ayr Major Norman Kennedy Monkwood Ayr Major Charles Thomas Dunlop Doonside Ayr and William Paterson of Monkwood Ayr shall be entitled if the salmon fishings belonging to them be injuriously affected by the exercise of the powers of this Act within five years after the completion of the works by this Act authorised to receive compensation (in addition to the compensation provided by the before-mentioned section of this Act) for any loss or damage sustained by them respectively by reason of such injurious affection and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement Provided that the tribunal in fixing such compensation (if any) shall take into account the provisions of this Act.

For protection of salmon fishings.

34.—(1) Subject to the provisions of this Act the Corporation may within the limits of deviation shown on the deposited plans deepen dredge scour and excavate by blasting or otherwise any portion of the beds and channels of Loch Doon and of the River Doon to such extent as they may deem necessary for improving and regulating the flow of water out of the said loch or in the said river and for other the purposes of this Act.

Power to dredge &c.

(2) All rock sand mud and other materials dredged up or removed shall be the property of the Corporation

[Ch. lxxiv.] *Ayr Burgh (Electricity)* [12 & 13 GEO. 5.]
Act, 1922.

A.D. 1922. — and they may use sell or otherwise dispose of or remove or deposit the same as they think fit.

(3) The Corporation may provide purchase take on lease hire and use such steam or other dredgers eroders engines lighters or other vessels machinery and apparatus as they may think necessary for effecting the purposes of this Act and may let the same on hire for such sums and upon and subject to such terms and conditions as they may think fit or may sell or dispose of the same.

(4) The Corporation may enter into and carry into effect agreements with the owners of lands abutting on and other persons interested in the River Doon for and with respect to the execution of works and the alteration modification or removal of any weirs or obstructions to the flow of water in that river.

(5) All operations of the Corporation under subsections (1) and (4) of this section shall be carried out to the satisfaction of the Fishery Board for Scotland.

Provision
of croys.

35. The Corporation shall provide and maintain such croys or other apparatus for the passage of fish in Ness Glen and into Loch Doon as the Fishery Board for Scotland may on the application of the Corporation or the River Doon Fishery Board reasonably prescribe or approve.

Period for
completion
of works.

36.—(1) If the works authorised by this Part of this Act are not completed within ten years from the commencement of this Act then on the expiration of that period the powers by this Act granted to the Corporation for executing any of such works not so completed or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Provided that the Minister of Transport may if he sees fit allow an extension of time for completion of such works or any of them or any portion thereof subject to such conditions (if any) as the Minister may see fit to attach thereto.

(2) Nothing herein contained shall restrict the Corporation from maintaining using altering replacing relaying or removing any of the works or enlarging the aqueduct (Work No. 3) and the surge chamber (Work No. 4) or in the case of the aqueducts (Works Nos. 5 and 6) laying down additional aqueducts at any time and from time to time as occasion requires.

37.—(1) In the execution maintenance and working of the works authorised by this Act all reasonable regard shall be had to the preservation as well for the public as for private owners of the beauty of the scenery of the district in which the said works are situated.

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For preservation of scenery.

(2) The Corporation shall at least one month before commencing the execution of the said works submit to the proprietor of the Craigengillan Estate (hereinafter in this section referred to as “the proprietor”) such plans and particulars as may be reasonably necessary to enable the proprietor to judge the effect upon the beauty of the scenery of the execution maintenance and working of the said works and the Corporation shall in constructing the said works make such provision for the preservation of the beauty of the scenery as may be agreed upon between the Corporation and the proprietor or in default of agreement as may be determined by an arbiter to be appointed on the application of either party by the Secretary for Scotland to be reasonable and proper for that purpose. Provided that if within twenty-one days after the submission of such plans and particulars the proprietor shall not have given written notice to the Corporation objecting thereto the proprietor shall be deemed to have approved of such plans and particulars and the works shall be carried out in conformity therewith.

(3) The Corporation shall not exhibit or permit to be exhibited any advertisements (other than advertisements relating to the electricity undertaking) upon any lands acquired or leased by them under the provisions of this Act.

(4) If the Corporation wilfully fail to comply with any of the provisions of this section they shall be liable to a penalty not exceeding twenty pounds and to a further penalty not exceeding five pounds for every day during which such failure continues after conviction in that behalf such penalties to be recoverable by the Secretary for Scotland as a debt to the Crown is recoverable.

38. The Corporation may at any time cause the water in any of the works authorised by this Part of this Act to be temporarily discharged into any available stream or watercourse.

Temporary discharge of water into streams.

In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and

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Act, 1922.

A.D. 1922. shall make full compensation to all persons for any damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration.

Accommo-
dation for
workmen
&c.

39. The Corporation shall if and when required by the local authority of the district in which the works authorised by this Part of this Act are situate (in this section called "the local authority") make provision to the satisfaction of the local authority for the proper housing and sanitary requirements of the persons employed in constructing the said works and for the treatment of cases of sickness (other than infectious disease) and accident occurring among the said persons during the construction of the said works. In considering what provision ought to be made for the said purposes the local authority shall take into consideration the provision already available in the neighbourhood of or conveniently accessible from the said works.

In the event of any dispute arising between the Corporation and the local authority as to the amount or nature or situation of the housing accommodation and sanitary requirements to be provided or as to the sufficiency of the provision for the treatment of cases of sickness (other than infectious disease) and accident or as to the time within which such accommodation shall be provided and such provision made or as to the carrying out by the Corporation of any requirement of the local authority under this section either party may appeal to the Scottish Board of Health (in this section called "the Board") and their decision shall be final and binding on both parties :

Provided that if it appear to the Board at any time that sufficient provision for the aforesaid purposes is not made they shall have power to require the Corporation to make provision or additional provision therefor to the satisfaction of the Board.

In the event of the Corporation or the local authority failing to comply with any order or requirement of the Board under this section they shall be liable to a penalty not exceeding twenty pounds and to a further penalty not exceeding five pounds for every day during which such failure continues and such penalties shall be recoverable with expenses at the instance of the Lord Advocate on behalf of the Board in any competent court.

For the purposes of this section the Board shall have the same powers of holding inquiries and of requiring reports to be made by local authorities and their officials as they have under the Public Health (Scotland) Act 1897 for the purposes of that Act and the provisions of the said Act relating to such inquiries and reports shall apply accordingly.

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40. The Corporation may purchase or take on lease dwelling-houses for persons employed by them for the purposes of the electricity undertaking and may erect maintain and let dwelling-houses with all necessary conveniences and appurtenances for such persons upon any lands for the time being belonging to the Corporation for the purposes of the said undertaking and (subject to the terms of the lease) upon any lands for the time being leased to the Corporation for the purposes of the said undertaking.

Dwelling-houses for persons employed by Corporation.

41. Section 1 of the Fourth Schedule to the Order of 1890 is hereby repealed and in lieu thereof the following provisions shall apply and have effect :—

Increase of maximum charges for electricity.

Where the undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter :—

(a) In respect of the quarters ending thirty-first March and thirty-first December—

For any amount up to fifteen units fifteen shillings and for each unit over fifteen units one shilling;

(b) In respect of the quarters ending thirtieth June and thirtieth September—

For any amount up to ten units ten shillings and for each unit over ten units one shilling.

42. The Corporation or the local authority of any district within the area of supply or such number of consumers not less than twenty as the Minister of Transport considers sufficient having regard to the population of the area of supply may at any time after the expiration of three years after the commencement of this Act make a representation to the Minister that the prices or methods of charge stated in the Order of 1890 as amended by this

Revision of maximum charges for electricity.

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Act, 1922.

A.D. 1922. — Act or approved by the Minister ought to be altered the Minister after such inquiry as he may think fit may make an order varying the said prices or methods of charge or substituting other prices or methods of charge in lieu thereof and the prices or methods of charge so varied or substituted shall have effect on and after such day as may be mentioned in the order as if they had been stated in the Order of 1890 :

Provided that the prices and methods of charge for the time being in force may be altered in like manner at any time after the expiration of any or every period of three years after they were last altered.

Power to
construct
electrical
sub-stations
under
streets.

43. The Corporation may subject to the provisions of the Electricity (Supply) Acts 1882 to 1919 and of the schedule to the Electric Lighting (Clauses) Act 1899 construct and maintain in or under any street being a public highway sub-stations transforming stations and other works in connexion with the electricity undertaking and may in any such street provide and maintain all such means of access and approach to such sub-stations transforming stations and works as may be necessary or convenient.

Power to
lay electric
mains in
private
streets.

44. The Corporation may upon the application of the owner or occupier of any premises abutting on or being erected in any street laid out but not repairable by the inhabitants at large within the area of supply supply such premises with electricity and may lay down take up alter relay or renew in across or along such street such mains wires and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Electricity (Supply) Acts 1882 to 1919 and of the Order of 1890 and the Order of 1914 with respect to the breaking up of streets shall extend and apply mutatis mutandis to and for the purposes of this section as if such streets had been specified in the Third Schedule to the Order of 1890 or in the Second Schedule to the Order of 1914.

Provisions
as to supply
of electricity
by agree-
ment.

45. If any consumer of electricity supplied by the Corporation under the terms of any agreement uses the electricity supplied to him by the Corporation in any manner contrary to the terms of such agreement the Corporation may if they think fit discontinue to supply

electricity to such consumer until they are satisfied that any electricity so supplied will be consumed in accordance with the terms of such agreement : A.D. 1922.

Provided that before discontinuing any such supply the Corporation shall give to the consumer taking the same seven days' notice in writing of their intention so to do and shall in such notice specify in what respect the electricity is used contrary to the terms of such agreement.

46.—(1) The maximum electrical power with which any consumer shall be entitled to be supplied by the Corporation shall not include any supply of energy taken only as a stand-by supply unless such consumer shall pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure and will cover other standing charges incurred by the Corporation in order to meet the possible maximum demand for those premises the sum to be so paid to be determined in default of agreement by arbitration in the manner provided by section 28 of the Electric Lighting Act 1882. As to maximum power which may be demanded.

(2) The provisions of this section shall not operate to deprive any consumer of electricity supplied by the Corporation under the terms of any agreement existing at the commencement of this Act of any right to which he would be entitled but for the said provisions.

47. The Corporation may refuse to supply electricity to any person whose payments for the supply of electricity or meter rent are for the time being in arrear (not being the subject of a bonâ fide dispute) whether any such payments be due to the Corporation in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises. Power to refuse to supply electricity in certain cases.

48.—(1) A notice to the Corporation from a consumer for the discontinuance of a supply of electricity shall not be of any effect unless it be in writing signed by or on behalf of the consumer and left with or sent by post to the Corporation or be given by the consumer personally at the office of the Corporation. Notice to discontinue supply of electricity.

(2) Notice of the effect of this section shall be endorsed upon every demand note for charges for electricity.

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Power to
recover
charge
for re-
connection.

49. Any expenses reasonably incurred by the Corporation in re-connecting any electric line or other work through which electricity may be supplied which may have been lawfully cut off or disconnected by reason of any default of the consumer may be recovered by the Corporation in like manner as expenses lawfully incurred by them in such cutting off or disconnecting.

As to
offices and
showrooms.

50. The Corporation may in connexion with and for the purposes of the electricity undertaking fit up showrooms and offices and exhibit specimen installations and give demonstrations of the uses to which electricity can be put and may appoint and pay persons for the purposes aforesaid.

Power to
erect posts.

51. The Corporation may with the consent of the road authority erect and maintain in or on any road or footpath within the area of supply which they are authorised to break up and in or on any public road or footpath beyond the area of supply such posts as may be necessary for carrying any of their electric lines overhead.

Power to
lay &c.
connecting
mains.

52. Subject to the provisions of the Electricity (Supply) Acts 1882 to 1919 and the schedule to the Electric Lighting (Clauses) Act 1899 incorporated with this Act the Corporation may for the purpose of enabling electricity to be brought into the area of supply from the generating station authorised by this Act exercise in the county of Ayr beyond the area of supply the same powers as regards the breaking up of streets and railways and of laying down erecting and placing electric lines and other works as they have and may exercise within the area of supply so far as the exercise of such powers is necessary for the purpose aforesaid.

For pro-
tection of
county
council
of county
of Ayr.

53.—(1) Nothing contained in this Act shall in any way limit or affect the powers of the county council of the county of Ayr (in this section referred to as “the county council”) to rebuild alter widen or repair the structure of any bridge upon which any work by this Part of this Act authorised shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of this Act.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing

any bridge which might involve interference with any portion of the undertaking authorised by this Part of this Act they shall prior to the commencement of such works give the Corporation one month's notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Corporation of electricity it is in the opinion of the county council necessary temporarily to remove the mains and other electrical appliances belonging to the Corporation from such bridge then the Corporation shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council.

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(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Corporation shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute arises between the county council and the Corporation with regard to this section the same shall be determined by an arbiter to be appointed on the application of either party by the Minister of Transport.

54. The following provisions shall notwithstanding anything in this Act contained or shown on the deposited plans and sections (unless otherwise agreed in writing) have effect for the benefit and protection of Mrs. Charlotte Tilke McAdam proprietor of the lands known as the estate of Craigengillan in the county of Ayr and her heirs and successors in the said lands and estate (all of whom are in this section included in the expression "the proprietor") :—

For protection of
Mrs. Charlotte Tilke
McAdam of
Craigengillan.

(1) The Corporation shall not under the powers of this Act take or acquire by compulsion any lands of the proprietor other than the lands described in Parts I. and II. of the Second Schedule to this Act and such parts of the lands shown on the deposited plans as may be required for the purposes of Works Nos. 2 4 5 and 6 and of the shafts forming part of Work No. 3 by this Act authorised and of affording means of access thereto but the Corporation shall be entitled to acquire

A.D. 1922.

such servitudes in perpetuity in under and over the lands of the proprietor as may be required for the construction and maintenance of Works Nos. 1 3 7 8 9 10 13 and 14 by this Act authorised and such servitudes in perpetuity to submerge for the purposes of this Act such part of the lands of the proprietor shown on the deposited plans as shall or may be submerged by or as the result of the exercise by the Corporation of the powers of this Act and such servitudes in perpetuity in under or along the lands mentioned in the section of this Act whereof the marginal note is "Power to lay mains &c." Provided that nothing in this section contained shall prevent the Corporation from exercising the powers conferred by the sections of this Act of which the marginal notes are respectively "Subsidiary works" "Power to dredge &c." and "Provision of croys":

- (2) If and at any time when any portion of the lands taken by the Corporation from the proprietor abutting on Loch Doon is not submerged by the operations of the Corporation the proprietor and any person duly authorised by the proprietor shall have at all times full right of access over such lands including access to Loch Doon and the River Doon and she shall be entitled to the use for all primary purposes of the water in all streams wells or lochs at present situated upon her lands:
- (3) The plans and specifications for the embankment or dam (Work No. 2) (including the sluices therein) and the surge chamber (Work No. 4) and any buildings to be erected on the estate of Craigengillan shall be submitted to the proprietor before such works or buildings are commenced and the Corporation shall give effect as far as the Corporation's engineer considers it reasonable and practicable so to do to all suggestions in relation thereto which may be made by the proprietor's engineer:
- (4) The Corporation shall not erect cottages dwelling-houses or other buildings or form camps for persons employed in the construction of the

works on any lands belonging to or taken from the proprietor except at such situations as may be approved by the proprietor which approval shall not be unreasonably withheld : A.D. 1922.

- (5) The Corporation shall pay to the proprietor such sum as may be agreed upon between the proprietor and the Corporation as the price or compensation to be paid by the Corporation for and in respect of all lands and others acquired from the proprietor by the Corporation and of all servitudes or other rights or powers taken acquired or exercised by them and for all depreciation in value loss injury or damage caused or which may be caused or may in any way result to the lands and rights of the proprietor including without prejudice to the foregoing generality all or any sporting and fishing rights pertaining thereto or the grazing stock and crops thereon by or through the construction of the works authorised by this Act (including injury or damage caused by or arising from disturbance during the construction of the said works) the submersion of such portion of the lands of the proprietor as shall or may be submerged by the operations of the Corporation the restriction of her rights of user and generally the carrying out of the powers and provisions of this Act and failing agreement between the proprietor and the Corporation as to the amount of the price or compensation to be paid as aforesaid the fixing of the same shall be referred to arbitration under the Lands Clauses Acts and the said price or compensation as so agreed upon or fixed by arbitration shall bear interest at the rate of five pounds per centum per annum from the date on which the Corporation shall first enter upon the lands of the proprietor for the purpose of constructing any of the said works until paid The Corporation shall in addition settle and relieve the proprietor of and from all claims on the part of her tenants or feuars for compensation in respect of loss injury or damage sustained by them in any way by or through the construction or maintenance of

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the said works or the operations of the Corporation and of and from all relative expenses as the same failing agreement may be fixed by arbitration :

- (6) The Corporation shall not erect or maintain standards on or overhead cables and wires over any part of Craigengillan Estate situate within a distance of three hundred and twenty yards from Craigengillan House :
- (7) The Corporation shall make compensation to the proprietor for all damage injury or loss which may at any time hereafter be caused or sustained by her in consequence of any bursting giving way or leakage of any of the works by this Act authorised :
- (8) If any application shall be made by the Corporation for any extension of time for the exercise of their compulsory powers to purchase lands belonging to the proprietor or for the completion of the works authorised by this Act the proprietor shall be entitled to object to any such extension :
- (9) Notwithstanding the acquisition by the Corporation of lands at present belonging to the proprietor the Corporation shall not acquire any rights of boating fishing shooting or other sporting rights over or in connexion with the said lands or the reservoir to be formed thereon and the whole rights of boating fishing shooting and other sporting rights at present enjoyed by the proprietor over or in connexion with the said lands and the River Doon and Loch Doon are hereby reserved to the proprietor Provided that the Corporation shall be entitled to place and maintain a boat or boats on the loch for the purposes of their works and to use the foreshore for beaching such boat or boats :
- (10) The Corporation shall take all reasonable precautions to prevent trespass and poaching by any of their employees or the employees of their contractors and shall during the construction of the works by this Act authorised employ the services of one watcher for carrying out this

A.D. 1922.

provision and shall prohibit any of the said employees engaged in or about the works from keeping any dog or ferret and in the event of any such employee being interdicted from trespassing or convicted of poaching the Corporation shall cause him to be instantly dismissed. Provided that the Corporation shall not be required to provide a watcher under this subsection if and so long as they provide a watcher or bailiff under the section of this Act the marginal note whereof is "Compensation water":

- (11) The provisions of the section of this Act the marginal note whereof is "Power to retain sell &c. lands" shall not apply to lands belonging to or taken from the proprietor:
- (12) The spoil and debris from the aqueducts and other works executed by the Corporation shall not be deposited on lands of the proprietor situated on the west side of the River Doon or within sight of Craigengillan House and such spoil and debris shall be left in such a manner as not to be unsightly:
- (13) The Corporation shall not erect cottages dwelling-houses or other buildings for the permanent accommodation of persons employed in or in connexion with the works by this Act authorised except upon the lands described in Part II. of the Second Schedule to this Act:
- (14) During the construction or repair of any of the works by this Act authorised the Corporation shall not cause any poisonous substance or noxious fluid to descend the River Doon except in such small quantities as shall be harmless to fish life:
- (15) If any difference shall arise between the Corporation and the proprietor or her tenants or feuars under this section the settlement of which is not otherwise provided for by this section such difference shall be referred to and determined by an arbiter to be appointed on the application of either party by the sheriff and the decision of such arbiter shall be final.

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For pro-
tection of
Marquess
of Ailsa.

55. For the protection of the most Honourable Archibald Kennedy Marquess of Ailsa Earl of Cassilis or other the owner or owners for the time being of the Culzean Castle Estate in the county of Ayr (all of whom are in this section referred to as "the proprietor") the following provisions shall unless otherwise agreed between the Corporation and the proprietor apply and have effect (that is to say) :—

- (1) If and at any time when any portion of the lands taken by the Corporation from the proprietor is not submerged by the operations of the Corporation the proprietor and any person duly authorised by the proprietor shall have at all times full right of access over such lands including access to Loch Doon and the River Doon and he shall be entitled to the use for all primary purposes of the water in all streams wells or lochs at present situated upon his lands :
- (2) The plans and specifications for the embankment or dam (Work No. 2) (including the sluices therein) shall be submitted to the proprietor before the works are commenced and the Corporation shall give effect as far as the Corporation's engineer considers it reasonable and practicable so to do to all suggestions in relation thereto which may be made by the proprietor's engineer :
- (3) The Corporation shall pay to the proprietor such sum as may be agreed upon between the proprietor and the Corporation as the price or compensation to be paid by the Corporation for and in respect of all lands and others acquired from the proprietor by the Corporation and of all servitudes or other rights or powers taken acquired or exercised by them and for all depreciation in value loss injury or damage caused or which may be caused or may in any way result to the lands and rights of the proprietor including without prejudice to the foregoing generality all or any sporting and fishing rights pertaining thereto or the grazing stock and crops thereon by or through the construction of the works authorised by this Act (including injury or damage caused by or arising from disturbance

during the construction of the said works) the submersion of such portion of the lands of the proprietor as shall or may be submerged by the operations of the Corporation the restriction of his rights of user and generally the carrying out of the powers and provisions of this Act and failing agreement between the proprietor and the Corporation as to the amount of the price or compensation to be paid as aforesaid the fixing of the same shall be referred to arbitration under the Lands Clauses Acts and the said price or compensation as so agreed upon or fixed by arbitration shall bear interest at the rate of five pounds per centum per annum from the date on which the Corporation shall first enter upon the lands of the proprietor for the purpose of constructing any of the said works until paid. The Corporation shall in addition settle and relieve the proprietor of and from all claims on the part of his tenants or feuars for compensation in respect of loss injury or damage sustained by them in any way by or through the construction or maintenance of the said works or the operations of the Corporation and of and from all relative expenses as the same failing agreement may be fixed by arbitration :

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—

- (4) The Corporation shall make compensation to the proprietor for all damage injury or loss which may at any time hereafter be caused or sustained by him in consequence of any bursting giving way or leakage of any of the works by this Act authorised :
- (5) Notwithstanding the acquisition by the Corporation of lands at present belonging to the proprietor the Corporation shall not acquire any rights of boating fishing shooting or other sporting rights over or in connexion with the said lands or the reservoir to be formed thereon and the whole rights of boating fishing shooting and other sporting rights at present enjoyed by the proprietor over or in connexion with the said lands and the River Doon and Loch Doon are hereby reserved to the proprietor. Provided that the Corporation shall be entitled to place

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and maintain a boat or boats on the loch for the purposes of their works :

- (6) The Corporation shall take all reasonable precautions to prevent trespass and poaching by any of their employees or the employees of their contractors and shall during the construction of the works by this Act authorised prohibit any of the said employees engaged in or about the works from keeping any dog and in the event of any such employee being interdicted from trespassing or convicted of poaching the Corporation shall cause him to be instantly dismissed :
- (7) The provisions of the section of this Act the marginal note whereof is " Power to retain sell &c. lands " shall not apply to lands belonging to or taken from the proprietor :
- (8) If any application shall be made by the Corporation for any extension of time for the exercise of their compulsory powers to purchase lands belonging to the proprietor or for the completion of the works authorised by this Act the proprietor shall be entitled to object to any such extension :
- (9) Prior to the construction of the works for discharging water into the River Doon from the power station the Corporation shall submit to the River Doon Fishery Board plans of such works and shall give the Board a reasonable opportunity of making recommendations in relation to the design and construction of the said works and shall give effect to such recommendations so far as reasonably practicable and any question as to whether such recommendations are reasonably practicable shall be determined in case of dispute by the President of the Institution of Civil Engineers :
- (10) During the construction or repair of any of the works by this Act authorised the Corporation shall not cause any poisonous substance or noxious fluid to descend the River Doon except in such small quantities as shall be harmless to fish life :

- (11) If any difference shall arise between the Corporation and the proprietor or his tenants or feuars under this section the settlement of which is not otherwise provided for by this section such difference shall be referred to and determined by an arbiter to be appointed on the application of either party by the sheriff and the decision of such arbiter shall be final. A.D. 1922.
—

56. The following provisions shall notwithstanding anything in this Act contained apply and have effect for the benefit and protection of Major Frederick Adrian Cathcart of Brockloch proprietor of and in respect of (1) the lands and farms of Portmark and Polmeadow and Lochhead in the parish of Carsphairn and county of Kirkcudbright and (2) the lands and farms of Mains of Keirs in the parish of Straiton and Drumgrange and Waterside in the parish of Dalmellington and county of Ayr and of his heirs and successors in the said lands and farms (all of whom are in this section included in the expression "the proprietor") and his and their tenants and feuars unless otherwise agreed in writing between the Corporation and the proprietor (that is to say):— For protection of Major Frederick Adrian Cathcart.

- (1) The Corporation shall not acquire otherwise than by agreement any part of the lands of the proprietor within the limits of deviation shown on the deposited plans but the Corporation shall be entitled to acquire a servitude right in perpetuity to submerge for the purposes of this Act such part of the said lands of the proprietor as shall or may be submerged by or as the result of the exercise by the Corporation of the powers of this Act. Subject to the said servitude right there shall be reserved to the proprietor the same rights of boating fishing and shooting on in or over the waters over the lands of the proprietor so submerged as aforesaid as he presently has on in or over the existing waters of Loch Doon and all other rights of the proprietor in respect of such lands and the Corporation shall not do or suffer to be done anything which will or may injure the rights so reserved as aforesaid and the Corporation shall not fence in the lands so submerged as aforesaid :

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- (2) Notwithstanding any servitude right acquired by the Corporation under this Act the proprietor and his tenants and feuars shall continue to be entitled to the use for all primary purposes of the waters in all streams springs wells and lochs flowing through or situated upon the lands of the proprietor as fully and freely as if the said servitude right had not been acquired by the Corporation :
- (3) The Corporation shall pay to the proprietor such sum as may be agreed upon between the proprietor and the Corporation as the price or compensation to be paid by the Corporation for and in respect of all servitude or other rights or powers taken acquired or exercised by them and for all depreciation in value loss injury or damage caused or which may be caused or may in any way result to the lands and rights of the proprietor including without prejudice to the foregoing generality all or any sporting and fishing rights pertaining thereto or the grazing stock and crops thereon by or through the construction of the works authorised by this Act (including injury or damage caused by or arising from disturbance during the construction of the said works) the submersion of such portions of the lands of the proprietor as shall or may be submerged by the operations of the Corporation the restriction on his rights of user and generally the carrying out of the powers and provisions of this Act and failing agreement between the proprietor and the Corporation as to the amount of the price or compensation to be paid as aforesaid the fixing of the same shall be referred to arbitration and the said price or compensation as so agreed upon or fixed by arbitration shall bear interest at the rate of five pounds per centum per annum from the date on which the Corporation shall first enter upon the lands of the proprietor for the purpose of constructing any of the said works or shall submerge any of his lands as aforesaid until paid The Corporation shall in addition settle and relieve the proprietor of and from all claims on the part of his tenants or feuars for compensation in

respect of loss injury or damage sustained by them in any way by or through the construction or maintenance of the said works or the operations of the Corporation and of and from all relative expenses as the same failing agreement may be fixed by arbitration : A.D. 1922.
—

- (4) In the event of any private roads leading to or used in connexion with any of the lands of the proprietor or of any bridges tracks or other means of access to such lands being interfered with or submerged in whole or in part by reason of the exercise of the powers of this Act and over which roads bridges tracks or other means of access the proprietor had at the seventeenth day of December one thousand nine hundred and twenty-one a legal right to enforce his use thereof the Corporation shall in addition to making compensation for any loss injury or inconvenience thereby occasioned provide other roads bridges tracks or means of access thereto of a like nature to those interfered with or submerged to the reasonable satisfaction of an engineer to be mutually appointed by the proprietor and the Corporation or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers The reasonable expenses of such engineer shall be paid by the Corporation :
- (5) The Corporation shall make compensation to the proprietor and his tenants and feuars for all damage injury or loss which may at any time hereafter be caused to or sustained by him or them in consequence of any bursting giving way or leakage of any of the works by this Act authorised or by reason of any flooding of any lands of the proprietor or of any damage to buildings or fences thereon occasioned by such flooding or by water logging severance of lands or otherwise arising from or caused by the construction or maintenance of the said works :
- (6) In the event of any question or difference arising between the proprietor and the Corporation under this section (other than subsection (4)

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hereof) the same shall be referred to an official arbiter under the Acquisition of Land (Assessment of Compensation) Act 1919 and the provisions of that Act shall apply and the decision of such arbiter shall be final and binding upon the parties.

Purchase
of part of
undertaking
by Board of
Trade.

57.—(1) The Board of Trade (hereinafter referred to as “the Board”) with the consent of the Treasury may at any time within six months after the expiration of the fifty-ninth year from the commencement of this Act or within six months after the expiration of any subsequent period of ten years by notice in writing require the Corporation to sell to the Board at the expiration of such period (not being less than one year nor more than three years from the date of the notice) as is mentioned in the notice so much of the undertaking of the Corporation authorised by this Act as is for the time being used by the Corporation in connexion with the appropriation diversion and user of water for the production of motive power and the generation of electricity thereby (including lands wayleaves servitudes buildings machinery works and apparatus of the Corporation used in so producing motive power and generating electricity and all main transmission lines as defined by the Electricity (Supply) Act 1919 used in connexion with such part of the undertaking) and at the expiration of the period mentioned in the notice the Corporation shall sell the same to the Board and the Board shall purchase the same at the price hereinafter mentioned.

(2) The price to be paid shall be—

(a) as respects so much of the part of the undertaking sold as consists of civil engineering works and other property of a permanent character including land wayleaves and other servitudes dams watercourses and buildings the capital expended thereon as shown in the audited accounts of the Corporation less one per centum for each year that has elapsed since the expiration of the tenth year from the commencement of this Act with the addition to the amount so determined of a percentage of such capital expenditure ascer-

tained in accordance with the following A.D. 1922.
scale :—

If the purchase takes place—

in the sixty-first year
from the commence-
ment of this Act - ten per centum ;

in the sixty-second year
therefrom - - - nine and three-
quarters per
centum ;

in the sixty-third year
therefrom - - - nine and one-
half per cen-
tum ;

and so on ;

- (b) as respects so much of the part of the under-
taking sold as consists of other works including
sluice-gates pipes turbines electric generators
and other machinery plant and main trans-
mission lines the capital expended thereon less
the value of any physical deterioration which
may be shown to have occurred therein :

Provided that the price to be paid for any work or building
shall in no case exceed the cost of the replacement thereof
at the date of the said notice.

(3) For a period of four years after the completion
of the purchase the Board shall supply to the Corporation
at such price as is hereinafter mentioned such an amount
of electricity as the Corporation may require not exceeding
in any one year the highest amount actually supplied
from the generating stations of the Corporation acquired
by the Board in any one of the five years immediately
preceding the date of the said notice of purchase but
not exceeding at any time the amount which can be
produced by the water available and the capacity of the
plant installed at the time of purchase.

The price at which electricity shall be so supplied
shall not exceed the cost of generating it regard being
had to capital charges (including interest and sinking
fund charges) allowances for depreciation and costs of
repairs and maintenance.

(4) If any question arises—

- (a) as to the works or property to be included in
the sale or the obligations to be transferred
thereon ; or

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—

(b) as to the price to be paid to the Corporation for the part of the undertaking acquired by the Board; or

(c) as to the amount of electricity to be supplied to the Corporation or the price of such supply ;

the question shall be determined by the arbitration of an arbiter appointed by the Lord President of the Court of Session.

(5) On the completion of the purchase the part of the undertaking purchased shall vest in His Majesty free from any debts or mortgages of the Corporation and all rights powers and authorities exerciseable by the Corporation in relation to the part of the undertaking purchased including the power of taking water and all obligations of the Corporation in relation thereto (including any obligations in relation to the taking of water the discharge of compensation water the control and maintenance of sluices croys and other apparatus and the payments for servitudes and wayleaves but not including any obligations in relation to the supply of electricity except for the purposes of subsection (3) of this section) shall be transferred to and vest in the Board.

(6) Nothing in this section shall affect any part of the electricity undertaking not included in the purchase or the rights or obligations of the Corporation in relation to the supply of electricity :

Provided that the obligation of the Corporation to furnish a supply of electricity shall after the completion of the purchase under this section not be enforceable against the Corporation if and so far as the performance thereof by the Corporation is rendered impracticable in consequence of such purchase.

PART IV.

FINANCE.

Expenses
of execu-
tion of Act.

58. All expenses incurred by the Corporation in carrying into execution the provisions of this Act (except such expenses as are to be paid out of borrowed money) shall be paid out of the revenue of the electricity undertaking and if in any year that revenue be insufficient for the purposes to which it is applicable the deficiency shall be made up out of the burgh general assessment.

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59.—(1) The Corporation may from time to time A.D. 1922.
independently of any other borrowing power borrow at Power to
interest for and in connexion with the purposes mentioned borrow.
in the first column of the following table the respective
sums mentioned in the second column thereof and in
order to secure the repayment thereof and the payment
of interest thereon they may mortgage or charge the
revenue assessment and rate mentioned in the third
column of the said table and they shall pay off all moneys
so borrowed within the respective periods (each of which
is in this Act referred to as “the prescribed period”)
mentioned in the fourth column thereof (namely) :—

Purpose.	Amount.	Charge.	Period for Repay- ment.
(a) For the purchase of lands and servitudes for and for the construction of the generating station and works and the erec- tion of dwelling-houses authorised by Part III. (Electricity) of this Act.	£123,000	The revenue of the electricity undertaking and the burgh general assessment.	Sixty years from the date or dates of borrowing.
(b) For paying the costs charges and expenses of this Act.	The sum requisite.	The burgh general assessment.	Five years from the commencement of this Act.

(2) (a) In addition to the moneys which the Corpo-
ration are by the foregoing provisions of this section
authorised to borrow they may borrow such sums of
money for the purposes of the electricity undertaking as
the Electricity Commissioners may sanction and any
moneys borrowed under any such sanction shall be
chargeable on such revenue assessment or rate as may be
prescribed by the Electricity Commissioners.

(b) Any money borrowed under this subsection with
the sanction of the Electricity Commissioners shall be
repaid within such period as may be prescribed by the
Electricity Commissioners and in the application of
section 1 (Amount and period of repayment of loans for
electric lighting) of the Electric Lighting (Scotland)
Act 1902 to such money a period not exceeding sixty
years shall be substituted for a period not exceeding
thirty years as the period within which such money is
to be repaid.

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Power to
re-borrow.

60.—(1) The Corporation shall have power—

- (a) To borrow for the purpose of paying off any moneys previously borrowed under this Act which are intended to be forthwith repaid; or
- (b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Act and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) By instalments or annual payments; or
- (b) By means of a sinking fund; or
- (c) Out of moneys derived from the sale of land; or
- (d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Borrowing
for current
expenses.

61. In order to raise such moneys as may be necessary to defray the current annual expenditure for the purposes of the electricity undertaking until the revenues from the said undertaking are charged and collected the Corporation may borrow during the currency of any year from the fifteenth day of May in one year to the fifteenth day of May in the succeeding year on the security of the burgh general assessment and such revenues in such way and manner as they may deem most expedient any sum or sums not exceeding in the whole one half of the amount

of such revenues for the preceding year from any bank or banking company or other company or person on such terms and conditions and in such form as may be agreed on between the parties. Provided always that such sum or sums so borrowed shall as nearly as may be be paid off and extinguished at or before the fifteenth day of May concluding the year to which such borrowing applies.

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62. The provisions of the following sections of the Act of 1873 and the Act of 1885 shall (with the necessary modifications and subject to the provisions of this Act) extend and apply *mutatis mutandis* to the moneys borrowed under this Act (namely):—

Application of provisions of Acts of 1873 and 1885.

The Act of 1873—

Section 117 (Arrears may be enforced by appointment of judicial factor);

Section 118 (Powers and duties of judicial factor);

Section 119 (Mortgages to be personal estate);

The Act of 1885—

Section 58 (Corporation may borrow on credit of a cash account);

Section 59 (Form of mortgage);

Section 60 (Mortgages may be accompanied with interest warrants);

Section 62 (Discharge of mortgages);

Section 73 (Protection of lender from inquiry);

Section 74 (Saving existing mortgages of Corporation).

63. Money borrowed by the Corporation under this Act shall be applied only to the purposes for which it is authorised to be borrowed being in every case purposes to which capital is properly applicable.

Application of money borrowed.

64. The Corporation shall pay off all moneys borrowed by them (other than money borrowed for current expenses) under this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them.

Mode of payment off of money borrowed.

65.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue

Sinking fund.

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A.D. 1922. of this Act such sinking fund shall be formed or maintained either—

(a) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a non-accumulating sinking fund; or

(b) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding four per centum per annum or such other rate as the Secretary for Scotland may from time to time allow will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority other than the Corporation or be deposited in bank the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation or the Secretary for Scotland at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Corporation be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent of the Secretary for Scotland reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

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(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Corporation be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Secretary for Scotland discontinue the annual payments to such sinking fund.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Corporation may determine.

(12) The period at which the payments into the sinking fund shall commence shall be within five years from the date of borrowing.

Annual
return
to Secretary
for Scotland
with respect
to sinking
fund.

66. The treasurer of the Corporation shall within six months after the expiration of each year during which any sum is required to be paid as an instalment or to be set apart for a sinking fund under this Act transmit to the Secretary for Scotland a return in such form as may be prescribed by the Secretary for Scotland and verified by statutory declaration if so required by him showing the amount which has been so paid or set apart in respect of that year and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of such sinking fund and the interest or income thereof have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any default in making such return such treasurer so making default shall be liable to a penalty not exceeding twenty pounds which shall be recoverable by the Secretary for Scotland as a debt to the Crown is recoverable. If it appear to the Secretary for Scotland by any such return or otherwise that the Corporation have failed to pay any instalment or to set apart any sum required by this Act to be set apart for the sinking fund or to make any increased payment thereto by this Act required or to have applied any portion of the moneys set apart for that fund or any interest or income thereof to any purposes other than those authorised by this Act the Secretary for Scotland may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part

of the sinking fund and such order shall be enforceable by decree of either division of the Inner House of the Court of Session in Scotland pronounced in a summary application presented for that purpose. A.D. 1922.

67. The costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Corporation out of any funds (not being in the nature of capital) rates or revenues belonging to them or under their control or out of any moneys borrowed for that purpose under this Act. Costs of Act.

The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

PROPERTIES WHEREOF PORTIONS ONLY MAY BE TAKEN.

Parish or Burgh.	Numbers on deposited Plans.
Parish of Straiton - - - -	29 and 43.
Parish of Dalmellington - - -	9 10 11 and 13.
Parish of Carsphairn - - - -	9.

SECOND SCHEDULE.

PART I.

LANDS FOR GENERATING STATION.

Certain lands in the parish of Dalmellington in the county of Ayr containing 1.1 acres or thereby comprising parts of the enclosures numbered 8 and 9 on the $\frac{1}{2500}$ Ordnance map Ayrshire sheet No. LII. 8 (edition 1909) bounded on the north by the estate road from Craigengillan to Dalfarson on the west by the River Doon and on the east and south by a line drawn from a point one

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PART II.

LANDS FOR DWELLING-HOUSES &C.

Certain lands in the said parish of Dalmellington containing 1·4 acres or thereby comprising parts of the enclosures numbered 8 and 15 on the said Ordnance map bounded within a line commencing at a point on the east side of the road from Gaw Glen Bridge to the River Doon forty yards or thereby south-west of the south-east corner of Dalfarson Cottages and running in a north-easterly and south-westerly direction to a point on the north-east side of the said road nine yards or thereby from the south-west corner of the meter house belonging to the Craigengillan Estate and thence in a north-westerly and northerly direction along the north-east and east sides of the said road following the line thereof for a distance of one hundred and seventeen yards or thereby to the point of commencement hereinbefore described.

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37, PETER STREET, MANCHESTER; 1, ST. ANDREW'S CRESCENT, CARDIFF;
or 23, FORTH STREET, EDINBURGH.